

#	Case Name	Tentative
1	25-01505083 <i>Alvarado vs. Culture Stanton Store, Inc.</i>	1) Demurrer to Complaint 2) Motion to Strike Portions Of Complaint Motion 1: Demurrer Defendant Culture Stanton Store, Inc.’s Demurrer to the Complaint is OVERRULED. Defendant demurs to the first, third and sixth causes of action for disability discrimination, failure to provide reasonable accommodations and wrongful termination in violation of public policy, respectively. As an initial matter, the Court notes that the demurrer incorrectly refers to the disability discrimination claim as the second cause of action rather than the first. Defendant’s memorandum of points and authorities, however, correctly refers to it as the first cause of action. 1st Cause of Action - Disability Discrimination The California Fair Employment and Housing Act (FEHA) prohibits employment discrimination on the basis of “physical disability, mental disability, . . . medical condition . . .” (Gov. Code, § 12940, subd. (a).) To establish discrimination under section 12940, subdivision (a), the plaintiff must show they (1) suffered from a disability, (2) were otherwise qualified to do the job (i.e. could perform the essential functions of the job with or without reasonable accommodation), and (3) was subjected to an adverse employment action because of the disability. (Arteaga v. Brink’s, Inc. (2008) 163 Cal.App.4th 327, 344-345; Green v. State of California (2007) 42 Cal.4th 254, 260.) Defendant argues the Complaint fails to allege Plaintiff (1) suffered from a qualifying disability; (2) could perform the essential duties of the job with or without reasonable accommodations; and (3) was subjected to an adverse employment action because of the disability since the Complaint does not allege Plaintiff informed Defendant of her qualifying disability. Under FEHA, a “physical disability” includes any physiological condition that affects the musculoskeletal system and limits a major life activity, such as walking or working (Gov. Code, § 12926, subd. (m)(1); see also Hobson v. Raychem Corp. (1999) 73 Cal.App.4th 614, 628, disapproved of on other grounds by Colmenares v. Braemar Country Club, Inc. (2003) 29 Cal.4th 1019, [finding major life activities includes: “caring for one's self, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning, and working”]). Here, the Complaint alleges a physiological condition that affects Plaintiff’s musculoskeletal system and limits her ability to walk. Namely, the Complaint alleges “on or about April 13, 2025, Plaintiff began to experience severe back spasms which began to impact her everyday life. Due to Plaintiff’s back spasms, Plaintiff had difficulty being mobile. Throughout the week, Plaintiff was visibly in chronic pain as she struggled to walk and complete routine tasks.” (Complaint ¶13.) “At all times relevant to this action, Plaintiff was a member of a protected class within the meaning of CAL. GOV’T CODE §§ 12940(a), 12926(m)

because of her disability and/or being regarded as disabled.” (Compl., ¶ 24.)

These allegations are sufficient at the pleading stage to allege Plaintiff suffered from a disability under FEHA.

As to pleading Plaintiff could perform the essential functions of the job with or without reasonable accommodation, the Complaint alleges “[d]uring Plaintiff’s shifts from on or about April 19, 2025, through April 20, 2025, Plaintiff began to experience side effects from the epidural she was administered. Plaintiff was suffering from a fever, nausea, and headaches. Due to the 4-20 weekend, Plaintiff was not permitted to leave work early due to how busy the store was.” (Compl., ¶ 16.) These allegations are sufficient at the pleading stage to allege Plaintiff could perform the essential duties of the job without a reasonable accommodation.

As to pleading an adverse employment action because of Plaintiff’s disability, the Complaint alleges that during the week of April 13, 2025, Plaintiff was “visibly in chronic pain” due to the severe back spasms to the extent that “staff members would approach Plaintiff to express concern for her health” and “they would inform Defendant that Plaintiff was not in the best condition to be on the floor working.” (Compl., ¶ 13.) Plaintiff sought treatment from her doctor on or about April 17, 2025, who administered an epidural for her pain and advised Plaintiff to remain off work for one week. (Compl., ¶ 14.) However, Plaintiff requested to be off for only a few days due to fear of retaliation by Defendant for missing the “4-20” weekend since Defendant, a cannabis company, would be extremely busy that particular week. (Compl., ¶ 14.)

Plaintiff returned to work on April 19, 2025 with her doctor’s permission and shortly thereafter provided all applicable medical documents to manager Stephanie and human resources. (Compl., ¶ 14.) On or about April 23, 2025, Plaintiff went to the emergency room due to headaches, nausea, and back spasms; “[t]hereafter, Plaintiff informed human resources of her emergency room visit and that she that she would not be able to attend work . . . On or about April 26, 2025, Plaintiff was issued a write up by manager Jennifer Lopez (‘Ms. Lopez’) for her alleged behavior and inconsistent mood swings. Thereafter, Plaintiff expressed her dissatisfaction with the write-up she was issued . . . This had been the first that Plaintiff’s behavior had been an issue” (Compl., ¶ 17.)

On or about May 15, 2025, Plaintiff requested a medical leave of absence per her doctor's recommendation to begin on or about May 30, 2025 and would provide all applicable medical documentation to Defendant upon receipt from her doctor. On or about May 20, 2025, Defendant informed Plaintiff that they do not offer FMLA but would review the options available to Plaintiff upon receipt of Plaintiff’s medical documents. (Compl., ¶ 18.) “On or about May 29, 2025, Plaintiff expressed concerns of retaliation to human resources representative Alysia Gordy . . . from Stephanie and management . . .

Less than a week later, on or about June 4, 2025, Plaintiff was informed by Defendant that she was being laid off due to budget cuts/low sales. Plaintiff was the only employee laid off.” (Compl., ¶ 19.) “Defendant unlawfully discriminated against Plaintiff, as previously alleged, on the basis of her disability and/or being regarded as disabled.” (Compl., ¶25.) “Defendant was substantially motivated to terminate Plaintiff because of her disability, being regarded as disabled, going on a medical leave, and requesting accommodations.” (Compl., ¶ 26.)

These allegations are sufficient at the pleading stage to allege Defendant was on notice of Plaintiff’s qualifying disability and subjected Plaintiff to an adverse employment action because of it.

Accordingly, the demurrer to the first cause of action is OVERRULED.

3rd Cause of Action - Failure to Provide Reasonable Accommodations

“Under section 12940, it is an unlawful employment practice ‘to fail to make reasonable accommodation for the known physical or mental disability of an applicant or employee’ unless the employer demonstrates doing so would impose an undue hardship. (§ 12940, subd. (m).) The essential elements of a failure to accommodate claim are: (1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual (i.e., he or she can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate the plaintiff’s disability.” (Wilson v. County of Orange (2009) 169 Cal.App.4th 1185, 1192.)

Defendant contends the third cause of action fails to allege all three elements. As discussed above, the Complaint adequately alleges Plaintiff has a disability covered by the FEHA (Compl., ¶ 13), Defendant was aware of Plaintiff’s disability (¶¶ 13, 14, 17, 18, 47), and Plaintiff can perform the essential functions of the position (¶ 16). As to pleading Defendant failed to reasonably accommodate Plaintiff’s disability, the Complaint alleges Plaintiff requested an accommodation in the form of a medical leave of absence but was terminated a few days after expressing her fear of retaliation from Stephanie and management. (Compl., ¶¶ 18, 19, 47; see Hanson v. Lucky Stores, Inc. (1999) 74 Cal.App.4th 215, 226 [“a finite leave can be a reasonable accommodation under FEHA, provided it is likely that at the end of the leave, the employee would be able to perform his or her duties.”].)

These allegations are sufficient to allege failure to provide a reasonable accommodation.

Therefore, the demurrer to the third cause of action is OVERRULED.

6th Cause of Action - Wrongful Termination in Violation of Public Policy

“The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff’s employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the

discharge caused the plaintiff harm.” (Yau v. Santa Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 154.)

Defendant contends the sixth cause of action fails to sufficiently allege the third element because Plaintiff has not alleged a policy to serve as the basis for her wrongful termination or that her termination was substantially motivated by a violation of public policy.

The Complaint alleges “Defendant’s conduct as previously alleged was in retaliation for Plaintiff’s assertion of rights under CAL. GOV’T CODE §§12900 et seq.” (Compl., ¶ 81.) “Plaintiff’s assertion of her rights under CAL. GOV’T CODE §§12900 et seq. was a substantial motivating reason for Defendant’s decision to terminate Plaintiff.

Defendant’s conduct was a substantial factor in causing harm to Plaintiff as set forth herein.” (Compl., ¶ 82.) “CAL. GOV’T CODE §§12900 et seq. evinces a policy that benefits society at large, was well-established at the time of Plaintiff’s discharge, and is substantial and fundamental.” (Compl., ¶ 83.) “Defendant’s wrongful termination of Plaintiff’s employment was substantially motivated by her disability, regarding her as disabled, serious health condition, going on a medical leave, and requesting accommodations as previously pled herein.” (Compl., ¶ 84.) Further, as discussed above, the Complaint sufficiently alleges a cause of action for disability discrimination. “[D]isability discrimination can form the basis of a common law wrongful discharge claim.” (City of Moorpark v. Superior Court (1998) 18 Cal.4th 1143, 1161.) This is sufficient to allege a violation of public policy.

Accordingly, the demurrer to the sixth cause of action is **OVERRULED**.

Motion 2: Motion to Strike

Defendant Culture Stanton Store, Inc.’s unopposed Motion to Strike is **DENIED**.

Defendant moves to strike punitive damages from the complaint.

Defendant argues the Complaint fails to allege facts establishing “oppression, fraud, or malice” on the part of Defendant. Defendant also argues the Complaint fails to allege that the individuals with whom she spoke about leave were officers, directors, or managing agents or identify the individual(s) who informed her of her termination.

Civil Code section 3294, subdivisions (a) and (b) provide:

(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.

(b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and

		employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation. “[T]he mere characterization of the conduct challenged as willful, reckless, wrongful and unlawful is not of itself sufficient to charge the malice in fact required to sustain a cause of action for punitive damages.” (Gambos v. Ashe (1958) 158 Cal.App.2d 517, 529. However, doing so “is not objectionable when sufficient facts are alleged to support the allegation.” (Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6–7.) Therefore, “[i]n order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) “In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (Ibid.) Here, the Complaint adequately alleges facts at paragraphs 13-20, 30-32, 41-42, 52-53, 64-65, 76-77, 88-89 that could, if proven, support a claim for punitive damages against Defendant based on willful and conscious disregard for Plaintiff’s rights. The motion is DENIED. Defendant is ordered to file an answer within 10-days.
3	24-01393857 <i>Bank Of America, N.A. vs. Chadha</i>	Motion to Vacate Plaintiff Bank of America, N.A.’s Motion to Vacate Dismissal and Enter Judgment Pursuant to Stipulation of the Parties is CONTINUED to 7/2/26 for Plaintiff to submit an updated amount of judgment to be entered. <u>Legal Standard:</u> Code of Civil Procedure section 664.6 states, “(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” <i>Hernandez v. Board of Education</i> (2004) 126 Cal.App.4th 1161, 1175–1176 (cleaned up), explains: